

		Although Avington filed an answer to the complaint, Osoka had not yet filed an answer. Accordingly, the Court need not consider Plaintiff's opposition on the ground of witness convenience. (<i>Cholakian & Associates v. Superior Court</i>, 236 Cal.App.4th at 368 and 372.) Within 10 days, Osoka shall submit a proposed order for the Court's signature. The order must contain at least the following: (1) the Court orders this matter be transferred to the Superior Court of California for the County of Santa Clara County, upon payment of all the necessary fees required by law; (2) Plaintiff is to pay transfer fees and costs no later than 60 days from service of the notice of the transfer order; (3) the basis of the transfer is because venue is proper in Santa Clara; (4) the clerk of this court is authorized to transfer all the pleadings and papers herein to the clerk of the receiving court; (5) the court, division, and address where the case is being transferred; and (6) if those costs and fees are not paid within 60 days after service of notice of the transfer order, the court on a duly noticed motion by any party may dismiss the action without prejudice to the cause on the condition that no other action on the cause may be commenced in another court prior to satisfaction of the court's order for costs and fees. (Code Civ. Proc., § 399, subd. (a).) The court hereby sets a hearing on an order to show cause re: dismissal for January 11, 2027 at 9:00 am in Department C11. The Case Management Conference is vacated. The court will hear argument on sanctions specifically, as to whether Plaintiff's counsel acted in good faith (the Court's tentative finding is that Plaintiff's counsel did act in good faith) and whether an offer by Osaka to stipulate to jurisdiction in Alameda County was a reasonable offer to stipulate under Code Civ. Proc., § 396b, subd. (b) (the Court's tentative finding is that is was reasonable). Case Management Conference Off calendar
12	Williams vs. West Coast Casters & Wheels, Inc.	Motion for Leave to Amend Before the Court is Defendants West Coast Casters & Wheels Inc., Kevin P. Manok, and Denise Renee Brady's Motion for leave to file a first amended answer to Plaintiff Florina Williams' Complaint.

2024-01388763

The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. (Code Civ. Proc., § 473, subd. (a)(1).) The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code. (Code Civ. Proc., § 473, subd. (a)(1).) Additionally, any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order. (Code Civ. Proc., § 576.)

“Ordinarily, courts should ‘exercise liberality’ in permitting amendments at any stage of the proceeding. [Citations.] In particular, liberality should be displayed in allowing amendments to answers, for a defendant denied leave to amend is permanently deprived of a defense. [Citations.]” (*Hulsey v. Koehler* (1990) 218 Cal.App.3d 1150, 1159.) Factors weighing against granting a defendant leave to amend an answer include unexplained delay, lack of diligence, and prejudice to the opposing party. (*Ibid.*)

Because the policy favoring amendment is so strong, “it is a rare case in which a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case.” (*Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530 [internal quotations omitted].) However, liberality only applies so long as there is no prejudice to the opposing party. (*Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564.) Denial of leave to amend is appropriate where inexcusable delay and probable prejudice to the opposing party is shown. This may happen where a proposed amendment opens up an entirely new field of inquiry without any satisfactory explanation as to why the major change in point of attack had not been made long before trial. (*Estate of Murphy v. Gulf Ins. Co.* (1978) 82 Cal.App.3d 304, 311.)

If the party seeking the amendment has been dilatory, and the delay has prejudiced the opposing party, the judge has discretion to deny leave to amend. (*Hirsa v. Superior Court* (1981) 118 Cal. App. 3d 486, 490; *Melican v. Regents of Univ. of Calif.* (2007) 151 Cal. App. 4th 168, 176; *Fisher v. Larsen* (1982) 138 Cal. App. 3d 627, 649 (finding where plaintiff knew for over five months that certain claims had not been properly pleaded, and took no action to amend until after a summary judgment had been granted against it, it was not an abuse

of discretion to deny leave to amend the complaint); *Hulsey v. Koehler* (1990) 218 Cal.App.3d 1150.) Prejudice exists where the amendment would require delaying the trial, resulting in loss of critical evidence, added costs of preparation, or an increased burden of discovery. (See *Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488 [trial court's denial of leave to amend was proper where those factors were present].)

California Rules of Court, rule 3.1324 requires that a motion to amend include a copy of the proposed amendment or amended pleading, identify by page, paragraph, and line number any additions to and deletions from the prior pleading, and a supporting declaration that specifies:

- (1) The effect of the amendment;
- (2) Why the amendment is necessary and proper;
- (3) When the facts giving rise to the amended allegations were discovered; and
- (4) The reasons why the request for amendment was not made earlier.

(Cal. Rules of Court, rule 3.1324(a), (b).)

Here, the Court finds that the procedural requirements are met.

A copy of the proposed amendment or amended pleading is a requirement of Rule of Court, rule 3.1324 so that parties and the Court are certain that the amended pleading conforms to the representations made in the motion for leave to amend.

Here, the Motion attaches the proposed First Amended Answer as Ex. D.

As to the merits, Plaintiff argues a long delay resulting in prejudice. She says that the parties have been engaged in discovery for nearly two years against the operative pleading.

But there is no trial date. Further, the Cross-Complaint, filed concurrently with the initial Answer, makes clear that Defendants are alleging Plaintiff stole from them. Further, the Complaint alleges that Plaintiff is owed wages and thus her status as exempt or non-exempt was already at issue. Thus, the new affirmative defenses are not opening up any new lines of inquiry.

The Court notes, however, that one of the Moving Parties has died. Defendant Kevin Manok died on 5/10/26. (See ROA 211, Declaration of the Successor in Interest to the decedent.) There is now a Motion

		pending to substitute into the case on Defendant/Cross-Complainant's behalf – set for 11/2/26. (See ROA 224.) The presence and continued participation in the action of the decedent's attorney is not sufficient as the power and authority of the attorney terminate with the client's death. (<i>Herring v. Peterson</i> (1981) 116 Cal.App.3d 608, 612; <i>accord, Pham v. Wagner Litho Machinery Co.</i> (1985) 172 Cal.App.3d 966, 972–73, following <i>Swartfager v. Wells</i> (1942) 53 Cal.App.2d 522, 527–28; Civil Code § 2356 (agency is terminated by death of principal). However, this Motion was filed before he died, on 1/15/26, and thus with authority. Thus, the Court grants the Motion as to all three Defendants. The court sets a Case Management Conference on January 11, 2027 at 9:00 a.m. Defendant to give notice.
13	Woodside Credit, LLC vs. Tissera 2025-01521042	Application/Request Case Management Conference Order to Show Cause re: Dismissal Off Calendar
14	Holland vs South Orange County Community College District 2022-01265727	Motion to Compel Compliance with Deposition Subpoena Continued to 10/27/2026 at 9:00 AM in Dept. CM02
15	Lopez vs Trans Pak, Inc. 2024-01437506	Case Management Conference Off Calendar